



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

August 12, 2024

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Jennifer Livingston**
Tax Registry No. 942121
71 Precinct
Disciplinary Case No. 2023-28413

The above named member of the service appeared before Assistant Deputy Commissioner Anne E. Stone on April 29 2024, and was charged with the following:

DISCIPLINARY CASE NO. 2023-28413

1. Said Police Officer Jennifer Livingston, while on duty and assigned to the 71st Precinct, on or about April 14, 2023, failed and neglected to activate her body-worn camera while engaging in police action.

P.G. 212-123, Page 1, Paragraph 4

USE OF BODY-WORN CAMERA

2. Said Police Officer Jennifer Livingston, while on duty and assigned to the 71st Precinct, on or about April 14, 2023, failed to properly and accurately prepare a required report associated with an investigation.

P.G. 207-07, Page 1, Paragraph 5

**PRELIMINARY INVESTIGATION
OF COMPLAINTS**

In a Memorandum dated June 10, 2024, Assistant Deputy Commissioner Stone found Police Officer Jennifer Livingston guilty of Specification No. 2 and Police Officer Livingston pled guilty to Specification No. 1 in Disciplinary Case No. 2023-28413. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

I have considered the totality of the circumstances and issues concerning the misconduct for which Police Officer Livingston has been found Guilty and deem that a greater penalty is warranted. Based on the facts and circumstances of this incident, the application of the aggravated penalties of the Department's Disciplinary Guidelines is appropriate.

It is therefore directed that Police Officer Livingston forfeit thirteen (13) vacation days and receive Training as a disciplinary penalty.

Edward A. Caban
Police Commissioner



POLICE DEPARTMENT

June 10, 2024

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2023-28413
Police Officer Jennifer Livingston	:	
Tax Registry No. 942121	:	
71 Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Sahira Asia, Esq.
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To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

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P.G. 207-07, Page 1, Paragraph 5

PRELIMINARY INVESTIGATION
OF COMPLAINTS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on April 29, 2024. Respondent, through her counsel, entered a plea of Guilty to Specification 1, and pled Not Guilty to Specification 2. The Department called Lieutenant [REDACTED] and Sergeant [REDACTED] [REDACTED] as witnesses. Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, and in accordance with her plea, I find Respondent Guilty of both Specifications. I recommend the forfeiture of eight (8) vacation days and that she be required to attend training.

ANALYSIS

This case arises from a radio-call of a 10-34 assault in progress in the confines of the 71 precinct, which Respondent answered on April 14, 2023. The facts underlying the allegations are largely undisputed. At approximately 03:00 hours, [REDACTED], a Jewish man visiting Brooklyn from Israel, called 911 to report that multiple young men had approached him on the

sidewalk. He alleged that one of the men said, “Suck my dick, you Jewish murderer,” and hit him in the head, knocking his yarmulke to the ground. (Dept. Exs. 2B, 2C, Tr. 104-05)

After some initial confusion regarding where the incident took place, officers on the scene determined the location of occurrence was in the confines of the 71 precinct and particularly Respondent’s sector. (Tr. 98-101) Respondent and her partner, Police Officer [REDACTED], arrived at the location. As she got out of her car, Respondent commented, “this is bullshit” to the 77 Precinct officers, who were there waiting to hand the job over to the 71. (Tr. 102, Dept. Ex. 5A at 09:18-09:21) Respondent spoke to the complainant, [REDACTED], who was accompanied by members of the local Shomrim neighborhood watch group.¹ The Shomrim representative repeatedly told the 77 precinct officers, who responded first, as well as Respondent when she arrived, that he believed that the incident was a “hate crime.” (Tr. 103-04) Respondent sent a text to her patrol supervisor, Sergeant [REDACTED], informing him of the incident, “Shomrim [is] starting shit...saying hate crime” and telling him that the incident amounted to nothing more than a harassment since the complainant suffered no injuries. Sergeant [REDACTED], who did not respond to the scene, agreed that if she felt it appropriate, Respondent should treat the incident as a violation– Harassment. (Tr.76-78, 107-08, 137; Dept. Ex. 7) Respondent conducted a canvass with the complainant, but they did not locate the perpetrator. Respondent did not activate her body-worn camera at any time during the investigation. (Tr. 109, 116)

At the command, Respondent, in consultation with Sergeant [REDACTED], completed a complaint report (“61”) regarding the incident, classifying the offense as a violation– second-degree harassment. (N.Y. Penal Law § 240.26) In the report, she described Complainant’s

¹ Shomrim is a Hebrew word meaning “watchers” or “guards” and may refer to: Shomrim (neighborhood watch group), Orthodox Jewish civilian volunteer patrols. <https://en.wikipedia.org/wiki/Shomrim>. The Tribunal takes judicial notice that the “Shomrim” are a neighborhood watch group, but are not law enforcement officers and thus do not possess law enforcement authority.

yarmulke as a “hat,” and did not include the reference to Complainant being Jewish when she wrote that the perpetrator insulted him by saying “suck my dick.” (Dept. Exs. 2A, 2D; Tr. 39, 143-144) The handwritten draft “61,” commonly referred to as the “scratch” copy, was reviewed by Sergeant [REDACTED]. He approved it and subsequently signed off on the final electronic version. (Dept. Exs. 2A, 2D Tr. 81)

On April 21, 2023, a week after the incident, Sergeant [REDACTED], assigned to the Office of the Chief of Crime Control Strategies, re-classified the incident as a misdemeanor, Aggravated Harassment in the Second Degree. (New York Penal Law § 240.30 (3)). A person commits this offense when, “[w]ith the intent to harass, annoy, threaten or alarm another person, he or she strikes, shoves, kicks, or otherwise subjects another person to physical contact, or attempts or threatens to do the same because of a belief or perception regarding such person's race, color, national origin, ancestry, gender, gender identity or expression, religion, religious practice, age, disability or sexual orientation, regardless of whether the belief or perception is correct.” Sergeant [REDACTED] also revised the report’s narrative to describe complainant’s head gear as a “yarmulke,” as well as including the complete statements the perpetrator allegedly made, “suck my dick, you Jewish murderer.” The upgraded complaint was classified as a bias incident. (Dep. Exs. 2B, 2C; Tr. 33-34)

The Department entered the following text message exchange between Respondent and Sergeant Joachim into evidence:

PO Livingston:	Shomrim starting shit
Sgt. [REDACTED]:	What they trying to do
PO Livingston:	Shomrim saying hate crime. I’m like harassment. That’s it. I gave them in car
Sgt. [REDACTED]:	We’re are in charge... if you feel it’s a harassment... that’s what it is

PO Livingston: Yes just harassment. He's not hurt

Sgt. [REDACTED]: Sounds good

PO Livingston: But I'm not doing hate crime. No proof what they said. U want harassment. Hate crime. Up To u

Sgt. [REDACTED]: Harassment. No pain.
(Dept. Ex. 7)

The Department called Lieutenant [REDACTED] to the stand. Sometime after the date of this incident, in the course of her duties as the Integrity Control Officer at the 71 Precinct, she became aware of an article published in an online neighborhood news site, "Crown Heights News," entitled, *Hate Crime Cover Up Exposed in the 71st Precinct After Jewish Man Assaulted by Hate Spewing Teens*. (Tr. 22-23; see Dept. Ex. 1) The article, dated April 20, 2023, identified Respondent by name, and alleged that she had improperly classified the April 14 incident, by not treating it as a bias incident. Lieutenant [REDACTED] could not recall how she became aware of the article, although she did remember reading it. Lieutenant [REDACTED] testified that as a result of the allegations contained in the article, she commenced an investigation. She searched for body-worn camera footage, any jobs at the time, date, and location in question, as well as checking for completed complaint reports. After obtaining and reviewing the complaint report prepared by Respondent, Lieutenant [REDACTED] observed that it was classified as "Harassment" and, instead of being forwarded to the Detective Bureau, was closed to patrol. Upon further investigation, she found that the complaint report had been revised by Sergeant [REDACTED]. (Tr. 24, 29-34)

Lieutenant [REDACTED] further detailed that she conducted official Department interviews of Respondent, Sergeant [REDACTED], and Police Officer [REDACTED]. Lieutenant [REDACTED] recollected that during Sergeant [REDACTED]'s official interview, she asked him whether the incident in question was a possibly a hate crime. She stated that Sergeant [REDACTED] acknowledged that although he and

Respondent “discussed” the possibility that the incident was bias-motivated, he did not take any further steps to determine whether it was or not. (Tr. 56-58)

After completing her investigation, Lieutenant [REDACTED] stated that she substantiated allegations against Respondent for failure to activate her body-worn camera and improperly completing a complaint report. She issued Respondent a Command Discipline (“CD”) for those infractions, which Respondent refused to sign. (Tr. 36, 39-40) Lieutenant [REDACTED] also issued Schedule A-CDs to Police Officer [REDACTED] and Sergeant [REDACTED], for failure to activate her body-worn camera and failure to respond to the scene of the incident, respectively.

The Department then called Sergeant [REDACTED] to the stand. Sergeant [REDACTED] testified that on the night of the incident, he had been a sergeant for two or three months, assigned mostly as the desk officer. On the night in question, Sergeant [REDACTED] was assigned as a patrol supervisor; he stated that he conducted roll-call on that tour, which included a reminder to the officers to activate their body-worn cameras. (Tr. 72-73, 86) Sergeant [REDACTED] recounted that Respondent reached out to him by cellphone to inform him that there was a radio run regarding a past assault involving a Jewish male. He specifically recounted, “[s]he stated that the individual male was walking down the street and a group of kids came behind him and was smacking him behind his head, knocking his hat off.” Respondent also informed him that she would speak to the complainant and canvass the area for the perpetrators. (Tr. 73-74)

Sergeant [REDACTED] subsequently conceded that he knew about the allegation that the perpetrators made comments to the complainant referencing, “Jewish murderers.” On cross-examination, he confirmed that when he spoke to Respondent over the phone about the incident, she told him that the perpetrator directed the term, “fucking Jew killers,” at the complainant. (Tr. 75, 88-89) He stated that he did not receive any further information from Respondent about the

past assault call, that he did not respond to the location, nor did he speak with any complainants or witnesses involved. (Tr. 75-76) He explained that based upon the information Respondent conveyed to him, the offense seemed to be no more than a violation harassment call because "... nothing as I heard that any anti-Semitic or any injuries at the time." [sic] (Tr. 76) Sergeant [REDACTED] recounted the text message exchange he had with Respondent which led him to that determination. (Tr. 77-78, Dept. Ex. 7)

When asked why he did not respond to the scene, Sergeant [REDACTED] replied, "I trusted [Respondent's] judgment in regards to that. You know, I figured that it was a simple harassment. Nothing more than that." (Tr. 76) Sergeant [REDACTED] subsequently confirmed that he was informed that the victim was from Israel. He was also aware that although the complainant did not want to proceed with the complaint, members of the Shomrim were being "persistent." (Tr. 79-80) Sergeant [REDACTED] detailed that when he received Respondent's text message that stated, "Shomrim starting shit," he interpreted it to mean that they were trying to make the job more than a harassment call. (Tr. 80-81)

Sergeant [REDACTED] recalled speaking to another sergeant, later on during his tour, who advised him to notify the duty captain regarding the incident, but he did not make that notification. When asked why, Sergeant [REDACTED] responded, "It sounded just like a harassment." (Tr. 90)

With regards to the preparation of the "61," Sergeant [REDACTED] acknowledged that he reviewed the complaint report prepared by the Respondent. Sergeant [REDACTED] explained that although Respondent was "in front" of him at the stationhouse while she wrote the "61," he did not tell her what to write in the report. Sergeant [REDACTED] also denied instructing her to leave out any details. After Respondent completed the complaint report, he signed it. (Tr. 81-83) When

asked why he did not make note of the absence of the information, about the yarmulke and the specific religious slur directed to the complainant, from the draft “61,” Sergeant [REDACTED] described it as an “oversight.”(Tr. 89-90) He confirmed that he was disciplined in regards to this incident, accepting a Schedule A “CD” with a penalty of three (3) vacation days for his failure to respond to the scene. (Tr. 84)

Respondent appeared before the Tribunal and testified that on the date of the incident, she was on patrol in the 71 precinct and was wearing her uniform, which included her Department-issued body-worn camera. (Tr. 97-98) She explained that after initially receiving the radio-run of an assault in progress, she contacted the 911 caller, via cellphone, to ascertain the details of what occurred, including asking about the location of the incident and whether the complainant suffered any injuries. The caller told her that the incident happened in a park. Respondent gave that information to central dispatch, who reassigned the call to the 77 precinct which covered the park. (Tr. 100-01)

Respondent stated that, after some time passed, central dispatch reassigned the call to her because the complainant clarified the location of the offense, and the address was within her sector. Respondent admitted that when she arrived on the scene, she “forgot” to activate her body worn camera. Respondent acknowledged that as she was met by the 77 precinct officers, she told them, “This is bullshit.” Respondent asserted that she made the statement because of her prior history with officers from the 77 precinct, “They get jobs, they have us go to the job and then it goes back to them.” (Tr. 102)

Once at the location, Respondent said that she recognized an individual, [REDACTED], whom she knew to be a “Shomrim Officer.” When asked what “Shomrim” is, she described the organization as “volunteer police.” Respondent detailed her prior interactions with [REDACTED], during

which he had disagreed with her handling of jobs. Respondent modified her earlier testimony, now claiming that she stated, “[t]his is bullshit” because she of her previous run-ins with [REDACTED] (Tr. 103)

Respondent alleged that while trying to interview the complainant, [REDACTED] kept interrupting her and repeatedly insisted that the incident should be classified as a hate crime. (Tr. 103-04) Indeed, during cross-examination she admitted being upset that he was present, in part, because he was often disrespectful to police officers. She described most of her interactions with members of Shomrim as negative. (Tr. 124-27)

While speaking with the complainant, Respondent stated she made notes on her Department cellular phone. She relayed that she often uses this function in order to record details about a job in order to be able to share her notes with her supervisor or detectives. (Tr. 106-07) In this case, Respondent documented the following information on her Department cell:

5’0

Afro black

White shirt

Hit in head no injury

No injuries

Stated racial slurs

You f Jew killers

Suck my dick

Knock off hat

You monkey we got you

(Resp. Ex. A)

Respondent recalled that she contacted Sergeant [REDACTED] and explained that, in spite of the complainant’s lack of injury, the Shomrim officer was pressuring her classify the incident as

a hate crime. She also conducted a canvass of the area for the perpetrators with the victim, but was unable to locate the perpetrator. (Tr. 108-09)

Respondent explained that she returned to the 71 Precinct and spoke to Sergeant [REDACTED] about the incident and the canvass. She “believe[d]” that she relayed to Sergeant [REDACTED] the religious insults the complainant alleged were made by the perpetrators. (Tr. 135) Respondent admitted that she did not write the full details of what the complainant told her in the “61.” She offered that after discussing it with Sergeant [REDACTED], “he suggested just leaving it at that—at that point.”(Tr. 113, 134-36; 140-41) She stated that Sergeant [REDACTED] told her, “. . . you can write it out and if that’s how you feel, it being harassment, then that’s how we’ll proceed.” (Tr. 110-11) On cross-examination, she did concede that she may have used the word hat instead of yarmulke when describing complainant’s headgear to Sergeant [REDACTED] because, “I am Lutheran. I have not had training, so I say hat/yarmulke, yarmulke/hat.”(Tr. 136)

She also recalled that while she and Sergeant [REDACTED] were at the desk their discussion of the job was overheard by another sergeant, who suggested that Sergeant [REDACTED] should call the duty captain, but Sergeant [REDACTED] did not do so. (Tr. 112)

Specification 1: Failure to activate body-worn camera

Respondent has entered a plea of guilty to Specification 1- Failing to activate her body-worn camera at any time during this incident. Having reviewed all of the evidence and in accordance with her plea, Respondent is found guilty. I have set forth my recommendation and reasoning regarding an appropriate penalty below.

Specification 2: Failure to properly prepare a required report

Respondent stands charged with failing to include sufficient information in the “61” she prepared in connection with this offense. She is accused of withholding the words “you Jew

murderer” when recording the phrase “suck my dick,” allegedly made by the perpetrator. In the report, Respondent also referred to the yarmulke as a “hat.” The Department contends that Respondent’s failure to include complete information in the “61” was intentional in order to prevent the incident from being classified as a bias incident. Respondent argues that she gave the relevant information to her supervisor, who failed to correct the report before signing off on it. The questions for the Tribunal are whether Respondent had a duty to include all pertinent facts when drafting the complaint report in this matter, and whether the information she failed to include was material. I find that that the excluded facts were material and that Respondent had a duty to include them in the complaint report.

Patrol Guide 207-07 requires that police officers when preparing a complaint report: “[c]omply with the Crime Complaint Reporting System Reference Guide and record sufficient facts that caused determination of preliminary classification of incident and all associated offenses.” The Crime Complaint Reporting System Reference Guide instructs the officer conducting a preliminary investigation that, “[a] thorough, systematic, professional preliminary investigation is essential so that all available information is utilized to prepare a complete and accurate Complaint Report. The Complaint Report Worksheet must contain all pertinent data that will be needed for review by the supervisor.”

In addition, Patrol Guide section 207-10, Bias Motivated Incidents, defines a “bias incident” as, “[a]ny offense or unlawful act that is motivated in whole or in substantial part by a person’s... identification with a particular... **religion**... as determined by the Commanding Officer, Hate Crime Unit.” (*emphasis added*) The steps for an officer to follow after arriving on the scene of a possible bias incident are quite straightforward: “determine if the offense or

unlawful act is possibly motivated by bias or prejudice as contained in the definition of a “Bias Incident;” and then, if [a] bias incident is suspected, request that the patrol supervisor to respond.

Proper reporting of potential hate crimes is essential, even where no physical injury is reported, because, as noted on the NYPD’s website, “Hate crimes may have consequences far beyond the criminal act itself.”² The affected community may feel that they are being targeted, and need to be reassured that their concerns are being addressed by the Department.

The analysis of this specification begins with the actions of Respondent on the scene of the incident in question. She has pled guilty to failing to record the entire encounter with her body-worn camera as required. This failure combined with her statement, “this is bullshit” as she stepped out of her car, are evidence that Respondent did not take this complaint seriously from the outset.

Respondent was candid about her feelings regarding the Shomrim civilian patrols, and in particular their representative, [REDACTED], who was present at the scene. She testified that her interactions with the Shomrim were “mostly” negative, and her dealings with this particular member were unfavorable. (Tr. 127-28) Respondent elaborated, “I would really like to hear from the victim. And I don't appreciate [REDACTED] telling the victims what the crime is going to be before I even have an opportunity to conduct an investigation.” (Tr. 128) This opinion, however, does not excuse Respondent from following Department policy, which requires objective reporting of all material information presented to her.

The information that the alleged perpetrator stated to Complainant, “suck my dick, Jewish murderer,” while knocking his religiously significant headgear off of his head were clear indicators that the incident may have been motivated by religious bias. Respondent’s repeated

² <https://www.nyc.gov/site/nypd/services/law-enforcement/hate-crimes.page>

insistence that she often interchanges the words “hat” and “yarmulke” because, as a Christian, the difference is not clear to her, as well as her contention that she has not had training on the subject was dubious and self-serving. She was attempting to minimize her culpability.

Respondent acknowledged that she was aware of Complainant’s religion, and during cross-examination, acknowledged her awareness that yarmulkes have religious significance. (Tr. 136) Patrol Guide 207-10 does not require the responding officer to be certain that an incident was motivated by bias, they just need to recognize signs of possible bias. In addition, Respondent’s assertion that in order for a crime to be considered bias motivated, the complainant must have an injury is not a compelling rationale within this context.

Respondent’s downplaying of the incident continued as she prepared the handwritten “scratch” version of the “61.” In the course of her testimony, Respondent acknowledged that she drafted the complaint report herself, classifying the offense as a violation harassment, explaining that Sergeant [REDACTED] told her to, “write it out and if that’s how you feel, it being harassment, then that’s how we’ll proceed.” (Tr. 110-11) However, during cross-examination, Respondent’s explanation changed, characterizing the classification as a “direct order” from Sergeant [REDACTED], before finally describing it as a mutual decision made after a discussion. (Tr. 140-41) When asked why she did not include in the “61” all of the information she had detailed in the notes she took while speaking with the complainant, Respondent stated that she omitted these details because Sergeant [REDACTED] suggested that she leave it the way it was written. (Tr. 113, 146-47)

Sergeant [REDACTED] gave a different version of events with regards to Respondent’s preparation of the “61.” I credit his testimony during which he acknowledged that Respondent completed the “scratch” copy of the report “in front” of him at the desk in the 71. Sergeant [REDACTED] did not describe sitting with Respondent as she wrote it. He denied telling her to leave

out, or indeed, to add in, any facts. Sergeant [REDACTED] admitted that he did not notify the duty captain about the incident, and that he accepted a “CD” for failing to respond to the scene that night.

Admittedly, the ultimate decision regarding crime classification rested in the hands of the Sergeant [REDACTED], who testified that he believed the incident seemed like nothing more than a “simple harassment.” However, that determination did not absolve Respondent of her responsibility, as set forth in the Crime Complaint Reporting System Reference Guide, to include all of the relevant facts in the report. Both of their names appear on the report, because they each have different obligations with respect to it.

The evidence before the Tribunal painted the picture of Respondent failing to fulfill her duties as set forth Patrol Guide 207-07. A combination of factors contributed to this failure, including her previous negative interactions with the Shomrim civilian patrol, in particular with the representative who was present that night. This exacerbated Respondent’s concern that the incident was being blown out of proportion. She was also frustrated with the back and forth with the 77 precinct. Additionally, Respondent was laboring under mistaken belief that because the complainant was not injured, the violation could not be upgraded to a hate crime. None of this excuses her failure to document important evidence that explicitly indicated a targeted attack based on religion.

The events that occurred on April 14, 2023 are precisely the type of incident contemplated by Patrol Guide 207-10. The words and actions of the alleged perpetrator, as recounted by the complainant, bore all of the hallmarks of a possible bias-motivated incident, and were clearly material facts. Rather than leaving these complex, potentially sensitive matters for officers and supervisors assigned to patrol to sort out, the Department created a

straightforward procedure that leaves the ultimate determinations regarding how best to proceed in the hands of specially trained members of service. However, in order for the procedure to work, the patrol officer who initially responds must faithfully report all of the pertinent facts that they have discovered. At the time of this incident, Respondent was an experienced patrol officer, employed by the NYPD for more than fifteen years. She was familiar with taking a complaint and writing "61s." By omitting the reference to "Jew murderer," as well as describing complainant's yarmulke as a "hat," Respondent failed to fulfill her duties as set forth in P.G. 207-07.

Accordingly, based upon the credible evidence, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 20, 2006, pled guilty to negligently failing to record a prescribed event with her body-worn camera and has been found guilty of failing to properly and accurately prepare a required report. The Department has recommended the forfeiture of the presumptive penalty of one (1) vacation day and training for Specification 1, to run consecutively with the aggravated penalty of ten (10) days for Specification 2.

As discussed below, I believe a forfeiture of three (3) vacation days for Specification 1 to run consecutively with five (5) vacation days for Specification 2 is the appropriate penalty.

With respect to Specification 1, failure to activate her body-worn camera, Respondent testified that she made a “mistake” in not turning on her camera. (Tr. 116) In spite of her candor, I do not find Respondent’s explanation compelling with respect to penalty. I note that in July, 2022, almost nine months before this incident, the Department changed the procedure with regard to body-worn camera’s to require officers to: “[a]ctivate BWC prior to engaging in *any* police action.” (P.G. 212-123, *emphasis added*) NYPD patrol officers, including Respondent, were assigned cameras several years before that. By the time of this occurrence, their use was well-established, and should be almost automatic.

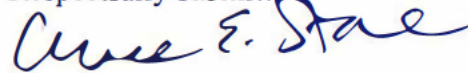
Body-worn camera footage is a vital investigative tool. While it may be understandable for an officer responding to an unexpected situation to forget to activate their camera, officers responding to routine jobs are expected to record them in their entirety. In the instant matter, Respondent seemed to be flustered and upset upon arriving at the scene and seeing the Shomrim representative, [REDACTED] with whom she had prior negative interactions. While that distraction may have excused an initial failure to activate her camera, Respondent did not turn on her camera at any time during the incident. Her interaction with the Complainant which may have included important facts about a potential hate crime was not captured, depriving investigators of possible leads. This complete failure argues in favor of an aggravated penalty. Therefore I am recommending Respondent forfeit 3 vacation days with respect to Specification 1.

With Respect to Specification 2, failure to properly prepare a required report, the Department has recommended the aggravated penalty of ten (10) days. Respondent has been found guilty of intentionally omitting relevant facts from the complaint report. Her rationale for

doing so appears to be a combination of a frustration with the Shomrim representative who was present demanding the offense be classified as a “hate crime,” a misunderstanding of the requirements for classifying a bias-motivated offense, and difficulties with another precinct. Respondent’s actions could indeed justify an aggravated penalty, as requested by the Department. However, the Tribunal cannot ignore that Respondent was being supervised that evening, and that supervisor reviewed and signed off on the faulty complaint report after discussing it with her. While Sergeant [REDACTED]’s inexperience and poor supervision that evening does not absolve Respondent of responsibility in this matter, it is a factor which must be considered with respect to penalty. I believe a forfeiture of five (5) vacation days addresses Respondent’s misconduct while acknowledging that her immediate supervisor did not correct her omissions as he should have.

With respect to both specifications, it is my recommendation that the penalties run consecutively, for a total forfeiture of eight (8) vacation days. I also believe that Respondent would benefit from training regarding documentation.

Respectfully submitted



Anne E. Stone

Assistant Deputy Commissioner Trials

DISAPPROVED

AUG 12 2024

EDWARD A. CABAN
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER JENNIFER LIVINGSTON
TAX REGISTRY NO. 942121
DISCIPLINARY CASE NO. 2023-28413

Respondent was appointed to the Department on July 20, 2006. On her three most recent annual performance evaluation, she was rated “Exceptional” for 2022, and “Exceeds Expectations” for 2020 and 2021. She has been awarded three medals for Excellent Police Duty.

In 2012, Respondent negotiated a penalty of 30 vacation days after pleading guilty to (i) criminal association, (ii) conducting unauthorized computer inquiries unrelated to official Department business, (iii) failing to report an off-duty incident, (iv) wrongfully divulging or discussing official Department business, (v) failing to make complete entries in her Activity Log and (vi) failing to obey a supervisor’s lawful order to cease contact with a known criminal.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials